

[1 EDW. 8. & *Ministry of Health* [Ch. lxxxv.]
1 GEO. 6.] *Provisional Order Confirmation*
(Halifax) Act, 1937.



CHAPTER lxxxv.

An Act to confirm a Provisional Order of the A.D. 1937.
Minister of Health relating to the borough of —
Halifax. [20th July 1937.]

WHEREAS under the provisions of the Public 38 & 39 Vict.
Health Act 1875 the Minister of Health has c. 55.
made a provisional order which needs confirmation by
Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows:—

1. The order of the Minister of Health which is Order in
set out in the schedule to this Act is hereby confirmed schedule
and shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Short title.
Provisional Order Confirmation (Halifax) Act 1937.

A.D. 1937.

SCHEDULE.

BOROUGH OF HALIFAX.

Provisional order altering a local Act.

63 & 64 Vict.
c. ccxxxiv. WHEREAS the mayor aldermen and burgesses of the borough of Halifax (hereinafter referred to as "the borough") acting by the council (in this order called "the corporation") are the local authority for the purposes of the Public Health Act 1875 and the unrepealed provisions of the Halifax Corporation Act 1900 (hereinafter referred to as "the Act of 1900") are in force in the borough;

And whereas in pursuance of the provisions of Halifax Order 1929 (hereinafter referred to as "the order of 1929") which was confirmed by Parliament the corporation acquired certain lands situate in the borough for the purposes of the street widening and improvement described as Work No. 1 in the schedule to the said order and parts of the said lands are not required by the corporation for such purposes;

And whereas by section 65 of the Act of 1900 the corporation are empowered to retain hold and use or to sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit any lands acquired by them under that Act;

And whereas the corporation have made application to the Minister of Health (hereinafter referred to as "the Minister") for the issue of a provisional order to alter or amend the Act of 1900 in the manner following :

Now therefore the Minister in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this order the Act of 1900 shall be amended as follows :—

Application
of section 65
of Act of
1900 as to
lands.

1. Section 65 (Power to retain sell &c. lands) of the Act of 1900 shall extend to any lands acquired by the corporation under the order of 1929 for the purpose of the street improvement described as Work No. 1 in the schedule to that order and not required for that purpose and shall have effect in relation thereto as if it authorised the corporation to lay out and develop such lands and to erect and maintain thereon shops offices

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warehouses and other like buildings and to sell lease exchange or otherwise dispose of any such shops offices warehouses or buildings upon and subject to such terms and conditions as they may think fit : A.D. 1937.
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Provided that the corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such buildings at a price or rent or for a consideration of a value less than the current market value of such buildings but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

2. The provisions of Part IX of the Local Government Act 1933 shall so far as they are applicable extend and apply to any sum borrowed by the corporation for the purposes of this order as if it were borrowed under that part of that Act. Borrowing powers.
23 & 24
Geo. 5. c. 51.

3. This order may be cited as the Halifax Order 1937. Short title.

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